

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MOLIBOZHENKO AND OTHERS v. RUSSIA

(Applications nos. 28046/19 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

25 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Molibozhenko and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Mr A. Pomazuyev, a lawyer practising in Vilnius.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

7. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court, therefore, decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

8. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

9. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

10. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

11. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

12. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

13. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07,

§§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018; *Kalyapin v. Russia* [Committee], no. 6095/09, § 76, 23 July 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to the examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

14. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative offence proceedings and alleged restrictions on the right to examine witnesses.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to deal separately with the remaining complaints of the applicants under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	28046/19 16/05/2019	**Aleksandr Sergeyevich MOLIBOZHENKO** 1995	Manifestation against Putin's re-election Saratov 05/05/2019	Article 20.2 § 5 of CAO	fine of 10,000 Russian roubles (RUB)	Saratov Regional Court 13/12/2018	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings.	3,500
2.	34072/19 20/06/2019	**German Aleksandrovich SEMENKO** 1974	Opposition manifestation Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/03/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 05/05/2018 and detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative offence proceedings.	4,000
3.	34289/19 14/06/2019	**Konstantin Konstantinovich SIMONOV** 1989	Opposition manifestation Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/01/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of grounds for administrative escorting and apprehension 05/05/2018 at 18:30; detention in excess of 3 hours.	4,000

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4.	35812/19 25/06/2019	**Sergey Aleksandrovich KORSAKOV** 1978	Opposition manifestation Moscow 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/02/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest on 05/05/2018 and detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative offence proceedings.	4,000
5.	45510/19 23/08/2019	**Dmitriy Mikhaylovich SLATVINSKIY** 1989	Opposition manifestation Krasnoyarsk 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Region Court 28/02/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 05/05/2018 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings.	4,000
6.	45518/19 20/08/2019	**Sergey Sergeyevich LENKOV** 1985	Manifestation against the pension reform Ekaterinburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 20/02/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unjustified arrest and detention on 09/09/2018 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings.	4,000
7.	47250/19 23/08/2019	**Yelena Petrovna PARSEGOVA** 1968	Manifestation against the pension reform St Petersburg 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 26/02/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - detention on 09/09/2018 in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings.	4,000

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8.	60094/19 05/11/2019	**Ruslan Malikovich TEMIRGALIYEV** 1994	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 20/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unjustified arrest on 27/07/2019; detention in excess of 3 hours to draw up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
9.	1657/20 24/12/2019	**Yelena Vladimirovna BUTOVA** 1985	Manifestation for fair elections to Mosgorduma Rostov-on-Don 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Rostov Regional Court 10/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of legal grounds for arrest and escorting to the police station on 10/08/2019 Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
10.	17897/20 30/03/2020	**Mikhail Sergeyevich NESVAT** 1997	Manifestation for fair elections to Mosgorduma Rostov-on-Don 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Rostov Regional Court 27/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful (unjustified) arrest on 10/08/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
11.	17905/20 30/03/2020	**Aleksandr Anatolyevich SADKOV** 1976	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 08/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 03/08/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000

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12.	19129/20 23/03/2020	**Igor Grigoryevich BELOGUROV** 1990	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to a police office on 10/08/2019 for the purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
13.	21816/20 14/04/2020	**Aleksey Igorevich VASILYEV** 1998	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/12/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - administrative arrest and detention in excess of 3 hours on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
14.	22842/20 23/03/2020	**Yelena Ivanovna TOLMACHEVA** 1996	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to a police office for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours from 03/08/2019 to 04/08/2019; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
15.	25547/20 03/06/2020	**Irina Mikhaylovna YEFREMOVA** 1986	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/10/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	3,500

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16.	26255/20 05/06/2020	**Maksim Maksimovich KHAVIN** 1995	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
17.	26436/20 05/06/2020	**Polina Kirillovna GUSEVA** 1995	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - lack of any legal grounds for the applicant's arrest and escorting to a police station on 27/07/2019; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
18.	26651/20 05/06/2020	**Filipp Aleksandrovich YERMACHENKOV** 1993	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000

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19.	26741/20 05/06/2020	**Denis Valeryevich PISKUNOV** 1971	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000
20.	27354/20 25/03/2020	**Vladimir Vladimirovich TORKOV** 1983	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 14/10/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to a police office for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours, from 2:30 p.m. on 27/07/2019 to 6:10 p.m. on 29/07/2019. Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.